

Sri Ajoy Datta vs Smt. Priya Saha on 29 June, 2026

2026:THC:792-

TRHC010003022025

HIGH COURT OF TRIPURA
AGARTALA

MAT App. No.05 of 2025

Sri Ajoy Datta, S/o: Sri Amar Datta, R/o: Joynagar, Dashamighat, P.O.
Agartala, P.S. West Agartala, Dist. West Tripura, 799001.

..... Appellant (s).

VERSUS

Smt. Priya Saha, W/o: Sri Ajoy Datta, D/o: Sri Rana Majumder, C/o: Sri
Biswajit Saha (Maternal Uncle), Contact No.9089296437 (S/o: Lt. Dilip Saha
of Jogendranagar) Basbagan Colony, Near Kathiababa Ashram, P.O.
Jogendranagar, P.S. Srinagar, Dist. West Tripura, 799004.

..... Respondent(s).

For Appellant(s) : Mr. Hare Krishna Bhowmik, Advocate For Respondent(s) : None HON'BLE THE
CHIEF JUSTICE MR. M.S. RAMACHANDRA RAO HON'BLE MR. JUSTICE BISWAJIT PALIT CAV
reserved on : 17.06.2026.

Judgment delivered on : 29.06.2026
Whether fit for reporting : NO

JUDGMENT & ORDER

(Biswajit Palit, J)

This appeal under Section 19(1) of the Family Courts' Act read with Section 28 of the Hindu Marriage Act, 1955 is preferred challenging the judgment dt. 04.12.2024 and decree dt. 19.12.2024 passed by Learned Addl. Judge, Family Court, Agartala, West Tripura District in connection with case No.T.S. (DIV) 424/2023.

2. Heard Learned Counsel, Mr. Hare Krishna Bhowmik appearing on behalf of the appellant-husband. None appeared on behalf of the respondent-wife.

3. Taking part in the hearing, Learned Counsel for the appellant- husband submitted that the appellant had instituted a divorce petition before the Learned Trial Court on the ground of cruelty. It was further submitted that inspite of efforts, notice upon respondent-wife could not be served and consequently, the suit proceeded ex-parte against the respondent-wife.

Learned Counsel further submitted that before the Learned Trial Judge, the appellant-husband adduced evidence in support of his allegations of cruelty caused by the respondent-wife against him and his parents. However, the Learned Trial Court did not consider the same and ultimately dismissed the petition which compelled the appellant-husband to file the present appeal. Finally,

Learned Counsel urged for setting aside the impugned judgment and decree passed by the Learned Trial Court and for granting decree in favour of the appellant-husband.

4. We have perused the record of the Learned Trial Court including the impugned judgment and decree delivered by the Learned Trial Court.

5. The brief facts of the case, as pleaded by the appellant-husband, are that the marriage between the parties was solemnized on 13.03.2020 in the maternal uncle's house of the respondent-wife. After marriage, they resided together in the matrimonial home of the appellant-husband. The appellant stated that his father is ailing, his mother runs a tea stall, and he earns his livelihood as an auto driver. It is alleged by the appellant-husband that shortly after the marriage, the respondent-wife started misbehaving with her in-laws. The appellant tried to convince her to adjust with her in-laws but in the meantime she became pregnant. During her pregnancy, the respondent expressed her desire to stay at her parental home in Kolkata for the delivery of the child. Although the appellant-husband opposed the proposal, the respondent-wife ultimately left for Kolkata with her father on 20.04.2021. The respondent-wife was taken to Kolkata by her father giving a written declaration to the effect that he was taking his daughter on his own risk with all responsibility of delivery of the child. On 25.07.2021, she gave birth to a male child, who has since remained in her custody. After few months of delivery, she returned to the matrimonial home along with the child and the parties resumed their conjugal life.

The appellant further alleged that after some time, the respondent-wife again insisted on shifting to Kolkata and repeatedly requested the appellant-husband to settle there, leaving behind his parents. On 15.01.2022, he accompanied the respondent-wife to Kolkata with the understanding that they would return to Agartala within 15 days. However, the respondent-wife allegedly refused to return and insisted the appellant-husband to live separately from his parents in Kolkata. On 29.01.2022, the appellant returned to Agartala alone.

The appellant further stated that despite his efforts to restore the conjugal life, the respondent-wife did not return to the matrimonial home. Finding no other alternative, on 22.04.2022, the appellant-husband sent one Advocate notice to the respondent-wife through his counsel requesting her to resume conjugal life, but in spite of receiving the same, she did not respond. However, on 19.09.2022, the respondent-wife along with her parents and maternal uncle visited the house of the appellant-husband and sought reconciliation. The parties thereafter executed a written undertaking on 21.09.2022 and resumed their conjugal life.

According to the appellant-husband, the reconciliation was short-lived and disputes again arose between the parties. Ultimately, the respondent-wife approached the West Agartala Women PS for lodging a false complaint against the appellant and his parents. After inquiry, the police officials could realize the actual scenario and advised the respondent-wife to return back to her matrimonial home but she left the matrimonial home and started residing at her maternal uncle's house at Jogendranagar.

The appellant further stated that he continued to provide food and other essential items for the respondent-wife and their minor son. He further alleged that the respondent-wife demanded separate rented accommodation and maintenance for her and her minor child but within one month she was found missing. Finding no other alternative, on 03.11.2022, his mother lodged a written complaint before the Mohila Commission against the respondent- wife. The Commission called both the parties on several dates but the respondent-wife did not turn up before the Commission and after that, the Commission advised them to take shelter of law.

Hence, under compelling circumstances, the appellant-husband instituted a suit seeking a decree of divorce.

6. Despite service of notice through paper publication dated 05.05.2024, the respondent did not appear before the Court.

7. Consequently, by order dated 30.05.2024, the suit proceeded ex- parte against the respondent-wife and ultimately, after completion of trial, Learned Trial Court passed the judgment dt. 04.12.2024 and decree dt. 19.12.2024 dismissing the prayer of the appellant-husband.

8. Admittedly, as the notice could not be served upon the respondent-wife, the suit proceeded ex-parte against the respondent-wife.

9. Before the Learned Trial Court, the appellant-husband examined himself as PW1 and also examined two other independent witnesses namely, Sri Subal Chandra Das as PW2 and Smt. Gita Biswas as PW3.

10. We have carefully perused the evidence adduced by the appellant-husband and the said independent witnesses.

11. The appellant-husband, in course of his examination, tried to support his version made in the petition. Similarly, the other two independent witnesses also tried to support the version of the appellant-husband. Surprisingly, on perusal of the evidence of PW2 and PW3 it reveals that the version of PW3 is the exact replica of the version of PW2. We could not find any distinction in the evidence of the said witnesses. Further, no convincing materials could be gathered from the evidence of those witnesses.

The appellant-husband, although sought divorce on the ground of cruelty but before the Learned Trial Court, he failed to place any cogent materials on record to establish that the respondent-wife caused cruelty upon him or his parents.

12. More interestingly, the mother of the appellant-husband, against whom the respondent-wife caused cruelty, was not examined as a witness on behalf of the appellant-husband. In a case of this nature, it is quite natural that the family members would be the best witnesses to support the case of each other, as the alleged act of cruelty is such a ground which cannot be perceived by an outsider who is not residing with the parties.

13. The appellant-husband could not place any materials before the Learned Trial Court from which it can be inferred that the independent witnesses had the occasion to observe the act of cruelty committed by the respondent-wife. Furthermore, no step was taken by the appellant-husband for ensuring the presence of the maternal uncle of the respondent-wife or the landlord where the respondent-wife used to reside/resided at a certain point of time to support his case. It is pertinent to mention that the marriage was solemnized at the residence of the maternal uncle of the respondent-wife. The appellant-husband could also have prayed before the Learned Trial Court to call the maternal uncle as a Court witness to support his case.

14. Furthermore, from the record of the Learned Trial Court it appears that no effective step was taken by the appellant-husband to ensure proper service of notice upon the respondent-wife. Even the alleged paper publication was also not carried out properly. Merely, the allegation of desertion from the matrimonial home with further assertion that the respondent-wife was reluctant to discharge her marital obligation, perform household chores or resume conjugal life with the appellant-husband without corroboration cannot be treated as a sufficient evidence of cruelty upon the appellant-husband.

Learned Trial Court in the judgment came to the finding that notice was not properly served upon the respondent-wife and the appellant- husband failed to take proper steps to cause service of notice upon the respondent. Learned Trial Court further held that the grounds of cruelty as projected by the appellant-husband were not sufficient enough to draw presumption that the respondent-wife caused cruelty upon the appellant- husband or his parents.

In the opinion of this Court, Learned Trial Court, after careful consideration of the evidence on record, has rightly dismissed the petition filed by the petitioner i.e. the appellant-husband herein. Learned Counsel for the appellant-husband also has failed to satisfy this Court to draw any negative inference to interfere with the judgment and decree passed by the Learned Trial Court.

15. In the result, we find no merit in the appeal and accordingly, the same stands dismissed. No order is passed as to costs.

Send down the record to the Learned Trial Court along with a copy of this judgment and order.

All pending application(s), shall stand closed.

(BISWAJIT PALIT, J)

(M.S. RAMACHANDRA RAO, CJ)

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by SNIGDHA DAS

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